

CV-24-007633 HEITZER, MURRAY vs LIU, ANNA YAN – Plaintiff’s Motion to Vacate Order #1 – DENIED.

County: stanislaus

Division: Civil Law and Motion

Department: 24

Hearing date: 2012-04-02

Motion: The Court finds that Plaintiff’s 3/20/26 Motion for Sanctions for Misuse of the Discovery Process Against Zen and Attorney of Record, Jointly and Severally, which resulted in the issuance of the challenged 5/20/26 ruling, was based on substantially the same conduct by Defendant and their Counsel as alleged in Plaintiff’s 1/8/26 Renewed Motion to Compel Production of Documents on Defendant and Request for Monetary Sanctions Against Zen and its Attorney Jointly and Severally and to Hold Attorney Kallis in Contempt of Court; and Defendant’s failure to comply with the Court’s Order of 11/14/25 to produce documents responsive to Plaintiff’s Request for Production of Documents, Set One. Additionally, both motions sought monetary sanctions in the form of attorney’s fees and costs. Therefore, regardless of the fact that Plaintiff’s 1/8/26 motion was brought pursuant to Civ. Proc. Code §§ 2031.310 (h) and 1008 (b), and Plaintiff’s 3/20/26 motion was brought pursuant to Civ. Proc. Code § 2023.010, the Court properly considered the 3/20/26 motion a rehash of the 1/8/26 motion and declined to reconsider its prior 3/12/26 ruling and award the requested sanctions. Notably, a court may invoke its independent authority to impose sanctions under the general sanctions provisions of the Civil Discovery Act only when confronted with an unusual form of discovery abuse, or a pattern of abuse, not already addressed by a relevant sanctions provision of the Act. *City of Los Angeles v. PricewaterhouseCoopers, LLP* (2024) 17 Cal. 5th 46. Plaintiff has not demonstrated that Defendant engaged in an unusual form of discovery abuse or a pattern of abuse not already addressed by a relevant provision of the Act that required the invocation of the Court’s independent authority to impose sanctions under different considerations than those previously undertaken by the Court. A trial court abuses its discretion when it exceeds the bounds of reason in exercising it, having considered all the circumstances before it. The Court of Appeal evaluates abuse of discretion relative to the legal principles governing the subject of the action. *In re Marriage of Brewster & Clevenger* (2020) 45 Cal. App. 5th 481. On this record, and relative to the principles expressed in the provisions of the Discovery Act governing the imposition of (monetary) sanctions, Plaintiff has not demonstrated any conduct by the Court exceeding the bounds of reason in the exercise thereof. The record also does not show a defect in notice or opportunity to be heard regarding the 5/20/26 decision. Rather, it shows no appearances and no hearing request when the matter was called, and confirmation of a tentative ruling. Plaintiff’s disagreement with the Court’s characterization of the motion as a rehash does not, on this record, demonstrate that the order was void or entered in excess of jurisdiction that would support vacating the said ruling.

Furthermore, Plaintiff’s arguments in support of vacatur are premised on a mistaken belief that Defendant did not oppose the 3/20/26 motion. The Court file shows that Defendant filed their opposition to the motion on 4/29/26 with proof of service on file dated 4/29/26, demonstrating service on Plaintiff by USPS mail. Notably Plaintiff did not assert any lack of any opposition by requesting a hearing after the tentative ruling was issued. The Court finds it surprising that Plaintiff is seemingly raising this issue now, apparently without foundation. Additionally, to the extent that Plaintiff’s contentions of judicial bias and lack of judicial integrity are also based on this mistaken belief that the motion on which the challenged order is based was unopposed, Plaintiff’s arguments in that regard are heavily discredited. The Court therefore finds that the Court’s 5/20/26 ruling is supported and well-reasoned and demonstrates the proper exercise of the Court’s discretion herein. *In re Marriage of Brewster & Clevenger* (2020) 45 Cal. App. 5th 481; Civ. Proc. Code §§ 2023.010 and 2023.030; *City of Los Angeles v. PricewaterhouseCoopers, LLP* (2024) 17 Cal. 5th 46; Civ. Proc. Code § 473 (d). “Submission on a tentative ruling is neutral; it conveys neither agreement nor disagreement with the analysis.” *Howard Jarvis Taxpayers Assn. v. Bay Area Toll Auth.* (2020) 51 Cal. App. 5th 435, 446, citing to *Mundy v. Lenc* (2012) 203 Cal. App. 4th 1401. Plaintiff cannot be held to have waived his right to seek relief from the 5/20/26 order. However, Plaintiff has also not identified any new facts or a procedural irregularity in the 5/20/26 proceedings. The docketed sequence shows the Court’s discretion was properly exercised against repetitive motion practice and lack of diligence by Plaintiff. Therefore, the Court denies Plaintiff’s motion to vacate and set aside the Court’s order dated 5/20/26 as void as a matter of law and also denies Plaintiff’s alternative request to modify the 5/20/26 order and grant Plaintiff’s attorney fees against Defendant Zen and his attorney of record jointly and severally.

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The Court finds that Plaintiff's 3/20/26 Motion for Sanctions for Misuse of the Discovery Process Against Zen and Attorney of Record, Jointly and Severally, which resulted in the issuance of the challenged 5/20/26 ruling, was based on substantially the same conduct by Defendant and their Counsel as alleged in Plaintiff's 1/8/26 Renewed Motion to Compel Production of Documents on Defendant and Request for Monetary Sanctions Against Zen and its Attorney Jointly and Severally and to Hold Attorney Kallis in Contempt of Court; and Defendant's failure to comply with the Court's Order of 11/14/25 to produce documents responsive to Plaintiff's Request for Production of Documents, Set One. Additionally, both motions sought monetary sanctions in the form of attorney's fees and costs.

Therefore, regardless of the fact that Plaintiff's 1/8/26 motion was brought pursuant to Civ. Proc. Code §§ 2031.310 (h) and 1008 (b), and Plaintiff's 3/20/26 motion was brought pursuant to Civ. Proc. Code § 2023.010, the Court properly considered the 3/20/26 motion a rehash of the 1/8/26 motion and declined to reconsider its prior 3/12/26 ruling and award the requested sanctions.

Notably, a court may invoke its independent authority to impose sanctions under the general sanctions provisions of the Civil Discovery Act only when confronted with an unusual form of discovery abuse, or a pattern of abuse, not already addressed by a relevant sanctions provision of the Act. *City of Los Angeles v. PricewaterhouseCoopers, LLP* (2024) 17 Cal. 5th 46. Plaintiff has not demonstrated that Defendant engaged in an unusual form of discovery abuse or a pattern of abuse not already addressed by a relevant provision of the Act that required the invocation of the Court's independent authority to impose sanctions under different considerations than those previously undertaken by the Court.

A trial court abuses its discretion when it exceeds the bounds of reason in exercising it, having considered all the circumstances before it. The Court of Appeal evaluates abuse of discretion relative to the legal principles governing the subject of the action. *In re Marriage of Brewster & Clevenger* (2020) 45 Cal. App. 5th 481.

On this record, and relative to the principles expressed in the provisions of the Discovery Act governing the imposition of (monetary) sanctions, Plaintiff has not demonstrated any conduct by the Court exceeding the bounds of reason in the exercise thereof.

The record also does not show a defect in notice or opportunity to be heard regarding the 5/20/26 decision. Rather, it shows no appearances and no hearing request when the matter was called, and confirmation of a tentative ruling. Plaintiff's disagreement with the Court's characterization of the motion as a rehash does not, on this record, demonstrate that the order was void or entered in excess of jurisdiction that would support vacating the said ruling.

Furthermore, Plaintiff's arguments in support of vacatur are premised on a mistaken belief that Defendant did not oppose the 3/20/26 motion. The Court file shows that Defendant filed their opposition to the motion on 4/29/26 with proof of service on file dated 4/29/26, demonstrating service on Plaintiff by USPS mail. Notably Plaintiff did not assert any lack of any opposition by requesting a hearing after the tentative ruling was issued. The Court finds it surprising that Plaintiff is seemingly raising this issue now, apparently without foundation.

Additionally, to the extent that Plaintiff's contentions of judicial bias and lack of judicial integrity are also based on this mistaken belief that the motion on which the challenged order is based was unopposed, Plaintiff's arguments in that regard are heavily discredited.

The Court therefore finds that the Court's 5/20/26 ruling is supported and well-reasoned and demonstrates the proper exercise of the Court's discretion herein. *In re Marriage of Brewster & Clevenger* (2020) 45 Cal. App. 5th 481; Civ. Proc. Code §§ 2023.010 and 2023.030; *City of Los Angeles v. PricewaterhouseCoopers, LLP* (2024) 17 Cal. 5th 46; Civ. Proc. Code § 473 (d).

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identified any new facts or a procedural irregularity in the 5/20/26 proceedings. The docketed sequence shows the Court's discretion was properly exercised against repetitive motion practice and lack of diligence by Plaintiff.

Therefore, the Court denies Plaintiff's motion to vacate and set aside the Court's order dated 5/20/26 as void as a matter of law and also denies Plaintiff's alternative request to modify the 5/20/26 order and grant Plaintiff's attorney fees against Defendant Zen and his attorney of record jointly and severally.